



Retirement income account

- Retirement Income Fund (RIF)
- Spousal Retirement Income Fund (SRIF)
- Life Income Fund (LIF)
- Locked-In Retirement Income Fund (LRIF)
- Restricted Life Income Fund (RLIF)
- Prescribed Retirement Income Fund (PRIF)



APPLICATION FOR RETIREMENT INCOME FUND

Reminder: Use the most up-to-date version of this application. Visit fidelity.ca for the latest available forms.

YOUR INVESTMENT PROFESSIONAL

Dealer company's name	Dealer code	Rep. code
Investment professional's name	Phone () -	

TYPE OF ACCOUNT

☐ New account	Fidelity account no.	Dealer Cross Reference No.
☐ Retirement Income Fund (RIF)	☐ Spousal RIF	☐ Life Income Fund (LIF)
☐ Locked-in Retirement Income Fund (LRIF)	☐ Prescribed Retirement Income Fund (PRIF)	☐ Restricted Life Income Fund (RLIF)
(Attach locked-in agreement and indicate legislation _____) (Not applicable for RIF or Spousal RIF)		

PERSONAL INFORMATION

• For Annuitant
All fields are mandatory

☐ Mr. ☐ Dr. ☐ Miss ☐ Mrs. ☐ Ms.	First name	Initial	Last name
Street address	Apt/Suite	Phone Number Home: () - Cell: () -	Preferred Contact # ☐ ☐
Postal code	City	Province	☐ English ☐ French
Date of birth (dd/mm/yyyy)	Social insurance number	Email	

PERSONAL INFORMATION

• For Spousal
All fields are mandatory when Spousal account type is applicable.

☐ Mr. ☐ Dr. ☐ Miss ☐ Mrs. ☐ Ms.	First name	Initial	Last name
Date of birth (dd/mm/yyyy)	Social insurance number	Phone Number Home: () - Cell: () -	Preferred Contact # ☐ ☐
Email			

E-DELIVERY

Fidelity uses electronic delivery to provide you with your Confirmations, Statements, Fund Financial Reports & MRFP, Annual Regulatory Notices, and other documents. It is your responsibility to register for My Accounts at fidelity.ca/investorlogin, in order to access and retrieve these documents. You will also receive electronic notice of documents at the email you have provided to us, and as they become available, and you understand and agree that you must provide us with a valid and up to date email in order to receive such notifications. **If you do not wish to receive documents via electronic delivery, or if you have any difficulty registering for My Accounts, please immediately contact us at 1 800 263-4077.**

You may also choose to receive tax slips/receipts by electronic delivery by checking the below box. If you do not check the box below, you will continue to receive tax slips/receipts by mail.

☐ I/we confirm that we choose to receive tax slips/receipt by electronic delivery and that by choosing this option, I will no longer receive tax documents by mail.

Transfer information

Attach all transfer documentation

Funds to be transferred from	FOR LIF	FOR LRIF
FOR RIF OR SPOUSAL RIF	☐ a Locked-in Retirement Account (LIRA)	☐ a Locked-in Retirement Account (LIRA)
☐ a Registered Retirement Savings Plan (RRSP)	☐ a Registered Pension Plan (RPP)	☐ a Registered Pension Plan (RPP)
☐ a Spousal RRSP	☐ a LRIF	☐ a LIF
☐ a Prescribed RIF	☐ a Restricted LIF	☐ another LRIF
☐ another RIF	☐ another LIF	
☐ From an existing Fidelity account # _____		

INVESTMENT SELECTION

(in-cash/in-kind transfer)

NOTE:

- U.S. currency funds are not available for retirement income accounts.
- Fund codes available at fidelity.ca/fund_codes
- In the event of a discrepancy between the code and the name, we will treat the code as correct and process accordingly.
- DSC series (including Low Load and Low Load 2 options) of Fidelity Funds cannot be purchased on and after June 1, 2022.

Fund Code	Fund Name	Sales Charge (0%-5%)	Allocation ☐ \$ ☐ %
TOTAL INVESTMENT AMOUNT			

APPLICATION FOR RETIREMENT INCOME FUND

PAYMENT INSTRUCTIONS

(in-cash/in-kind transfer)

- For direct deposit it may take up to 48 hours to post on your bank account.

Withdrawal amount (select one)

☐ I want to withdraw the minimum amount.

☐ I want to withdraw the maximum amount (LIF, RLIF & LRIF only).

☐ I want to withdraw the following amounts:

From fund Code

Amount ☐ \$ ☐ %

TOTAL WITHDRAWAL AMOUNT

RIF only: Term of payments based on
☐ my age ☐ my spouse's date of birth: (dd/mm/yyyy)

Frequency (select one)
☐ monthly ☐ quarterly ☐ semi-annually ☐ annually

Start date (dd/mm/yyyy)

RIF only: Payments to be
☐ gross ☐ net

Method of payment
☐ send cheque to my address
☐ deposit to non-registered/TFSA Fidelity account #
☐ direct deposit (provide banking details in next section)

BANKING INFORMATION

Required if you chose direct deposit for method of payment

ATTACH YOUR BANKING INFORMATION TO THIS APPLICATION FORM.

Fidelity EFT Policy: To help protect our investors, Fidelity Investments requires **one** of the following:

- A copy of a personalized void cheque with client name and banking information pre-printed/embossed on the cheque.
Counter cheques will not be accepted.
- A letter from a recognized Canadian Bank or Credit Union issued on an official bank form or letterhead, with client name and bank account details. Bank stamp and signature must be provided if indicated on the bank form or letterhead.

- Online Bank Form, with or without void cheque image, with client name and bank account details. Bank stamp and signature must be provided if indicated on the Online Bank Form.

NOTE: Payments can only be made payable to the beneficial owner/client name(s) on the Fidelity account.

SYSTEMATIC EXCHANGES

Optional

- The last run date is the actual last systematic exchange date.
- Fund code takes priority over fund name.
- Only available between the same load option.

☐ I authorize Fidelity to exchange funds within my Fidelity account as follows:

FREQUENCY OPTIONS (choose one) Last run date* (dd/mm/yyyy)

☐ Weekly ☐ Twice a Month ☐ Monthly ☐ Every 2 Months ☐ Quarterly ☐ Semi-annually ☐ Annually

Start Date (dd/mm/yyyy)	Second Run Date For twice a month only (dd/mm/yyyy)	From Fidelity Fund		Amount		To Fidelity Fund	
		Fund Code	Fund Name	\$	Units	Fund Code	Fund Name

YOUR SUCCESSOR ANNUITANT AND BENEFICIARY

Optional

- The beneficiary cannot be the same as the successor annuitant.
- Successor holder can only be the spouse or common-law partner
- For residents of Quebec, beneficiary will be defaulted to estate.
- A successor annuitant cannot be designated on a LIF, RLIF or LRIF.
- If you wish to designate more than two beneficiaries, please use the Beneficiary/Successor Holder Designation Form for Registered Accounts, available at Fidelity.ca under Advisor resources > Forms.

You may wish to seek professional advice regarding the effectiveness of this beneficiary designation under the laws applicable in your province. In certain provinces, a beneficiary designation may be made only by will, and in some cases the rights of your spouse may override a beneficiary designation. Depending on your situation, you may also wish further information on the impact of future marriages or divorces, the effect of a locked-in addendum attached to the Plan, or circumstances in which you may wish to change your beneficiary.

DESIGNATION OF SUCCESSOR ANNUITANT

In the event of my death, I elect that payments from my Plan will continue to my spouse named below, if he/she survives me and is my spouse on the date of my death.

Name of spouse (Last and first name, in full)	Date of birth (dd/mm/yyyy)	SIN

DESIGNATION OF BENEFICIARY

If I have designated my spouse as successor annuitant, the following beneficiary designation will be effective only if my spouse predeceases me or is not my spouse on the date of my death. I designate the person named below as the beneficiary under the Plan, provided this person is living at the date of my death; otherwise, payment will be made to my estate. I reserve the right to revoke this designation.

I understand that I must deliver any change to my beneficiary designation to Fidelity in writing, in a form acceptable to Fidelity.

Last Name	First Name	Relationship	Allocation %
Last Name	First Name	Relationship	Allocation %



APPLICATION FOR RETIREMENT INCOME FUND

PRIVACY NOTICE AND YOUR CHOICES

By providing your personal information on this form, or by authorizing your Dealer, financial institution or other third party to provide your personal information, you consent to Fidelity using your personal information to: administer your account, provide you and/or your authorized Dealer with transaction confirmations, statements, tax receipts, or other documents, information or services as requested from time to time, process pre-authorized debit transactions; use your personal information on this form (including email) and combine such information with other demographic information about you, your investment profile, and your online and offline interactions with Fidelity, to keep you informed of products and services that may be of specific interest to you; and otherwise required or permitted by law.

Fidelity may disclose the Information to its employees, agents and third parties who are bound to maintain its confidentiality, including your Dealer, third party service providers, other financial institutions and any governmental authority, as necessary for the above purposes or as

required by law, including to comply with requests for information from regulatory bodies and for income tax reporting purposes.

If you provide personal information about another individual, you represent and warrant that you have obtained appropriate consent from that individual to disclose their personal information to Fidelity for the above purposes.

You may choose to unsubscribe from receiving marketing and promotional communications from us at any time by following the unsubscribe procedure included in the communications, or via our Privacy Centre, or by contacting us at FICCustService@fidelity.ca or 1 800 263-4077. You may also exercise other privacy rights under applicable laws, such as the right to access, correct or withdraw your consent to our use of your personal information. For detailed information about how we collect, use and disclose your personal information and your privacy rights, please access our Privacy Statement at fidelity.ca.

YOUR SIGNATURE

For all transactions

You acknowledge that you have received a copy of the current fund facts of the fund(s) selected and understand that these transactions are made under the terms and conditions therein. You understand that mutual funds are not insured under the Canada Deposit Insurance Corporation Act or la Régie de l'assurance-dépôts du Québec. You certify that the information provided by you on the Application is complete and true in all respects. You have read, understood and accept the terms of this Supplement, including with respect to E-Delivery. You request that the Application and all documentation relating to your Account or the Program be provided to you in English. Vous demandez que la demande ainsi que toute la documentation afférente à votre compte ou au régime en anglais.

FOR QUEBEC RESIDENTS ONLY / RÉSERVÉ AUX RÉSIDENTS DU QUÉBEC

By signing below, I acknowledge having received and examined the terms of this agreement in French and it is my express wish that this agreement be drawn up in English. I agree not to dispute the

validity of this agreement on the basis that it is drawn up exclusively in English. En apposant ma signature ci-dessous, je reconnais avoir reçu et examiné les conditions de cet accord en français, et c'est ma volonté expresse que cet accord soit rédigé en anglais. Je conviens de ne pas contester la validité de cet accord au motif qu'il est rédigé exclusivement en anglais.

To: Computershare Trust Company of Canada (The "Trustee") I hereby request Computershare Trust Company of Canada to act as Trustee of my Fidelity Investments Retirement Income Fund (the "Plan") and to apply for registration of the Plan under the Income Tax Act (Canada) and, if applicable, any provincial income tax legislation. I acknowledge and agree to be bound by the terms and conditions set out in the Declaration of Trust set forth on the reverse side hereof and, if applicable, the LIF, RLIF, PRIF or LRIF Addendum which forms part of the Plan, as amended from time to time. I understand that the payments I receive from my Plan are taxable and may be subject to withholding tax.

Date (dd/mm/yyyy)

Your signature/Annuitant's signature (for registered accounts)

X

Accepted by Fidelity Investments Canada ULC, as agent for Computershare Trust Company of Canada, Trustee.

Authorized signature

Visit us online at fidelity.ca
or call Fidelity Client Services
at 1 800 263-4077
or fax us at 1 800 387-8092

Fidelity Investments Canada ULC
483 Bay Street, Suite 300
Toronto, Ontario M5G 2N7

Tips to help you complete this form

Print all information clearly. Errors can take up valuable time.

Complete the Personal information section completely and carefully. The application cannot be processed without it.

Attach all required documents to Fidelity's copy, including cheques.

Addendum for LIF, LRIF, PRIF and RLIF.

These plans are governed by provincial or federal legislation. The applicable addendum to the plan outlines the terms governing your plan, and may require your signature.

When completing the *Investment selection* section,

- Copy the fund code carefully from fidelity.ca.
- Abbreviate the fund name, eliminating the words "Fidelity" and "Fund." For example, to choose the Fidelity Canadian Growth Company Fund, simply print "Canadian Growth Company" or "Cdn Growth Co." We use this name to verify the code you have written. If there is a discrepancy between the fund code and the fund name indicated, we will assume the fund code is correct.
- Check one box to show whether you are using dollar amounts or percentages.

When completing the *Payment instructions* section,

- **For all accounts** Your first payment must not be later than the end of first complete calendar year after the date of this application. If your first payment is within this calendar year, a withholding tax will be applied. Your election cannot be changed after the first payment is made out of the Plan, even if your spouse dies or you and your spouse separate.
- **For RIF and Spousal RIF** Each year, you must withdraw a minimum amount based on your age or your spouse's age. If you withdraw more than the minimum, a withholding tax will be applied.
- **For LIF or RLIF** You must withdraw a minimum amount each year. You can withdraw more than the minimum, but there is a limit to what you can withdraw to be sure there is enough money to provide an income until you're 80. If your instructions exceed the maximum, you will receive only the maximum.
- **For Quebec LIFs**, there is no maximum withdrawal limit if you are aged 55 and over.

- **For LRIF** You must withdraw a minimum amount each year. You can withdraw more than the minimum, but there is a limit to what you can withdraw. If your instructions exceed the maximum, a withholding tax will be applied.

Fidelity EFT Policy: To help protect our investors, Fidelity Investments requires one of the following:

- A copy of a personalized void cheque with client name and banking information pre-printed/embossed on the cheque. *Counter cheques will not be accepted.*
- A letter from a recognized Canadian Bank or Credit Union issued on an official bank form or letterhead, with client name and bank account details. Bank stamp and signature must be provided if indicated on the bank form or letterhead.
- Online Bank Form, with or without void cheque image, with client name and bank account details. Bank stamp and signature must be provided if indicated on the Online Bank Form.

Note: *Payments can only be made payable to the beneficial owner/client names on the Fidelity account.*

To have the payments deposited directly into your bank account, complete the sections called Payment instructions and Banking information.

The applicant needs to sign the form. The applicant's signature in the section called Your signature applies to all information provided on the form.

Send the original signed form with the initial payment to Fidelity at 483 Bay Street, Suite 300, Toronto ON M5G 2N7.
or

You may fax this form to Fidelity at 1 800 387-8092.

**FIDELITY INVESTMENTS
RETIREMENT INCOME FUND
DECLARATION OF TRUST**

We, Computershare Trust Company of Canada, a trust company incorporated under the laws of Canada and having an office in the City of Toronto in the Province of Ontario, hereby declare that we accept the office of trustee for you, the planholder named on the application form accompanying this declaration (the "**Application**") under the Fidelity Investments Retirement Income Fund (the "**Plan**") on the following terms and conditions. You acknowledge that we have retained Fidelity Investments Canada ULC (the "**Agent**") as our agent to perform on our behalf certain of our duties and responsibilities under this declaration.

1. **COMPLIANCE:** At all times, your Plan will comply with all relevant provisions of the Act and, if applicable, the *Taxation Act* (Quebec), with respect to a RRIF. You will be bound by the terms and conditions imposed on your Plan by all applicable legislation.
2. **REGISTRATION:** We will submit the Plan for registration in accordance with the Act.
3. **DEALER:** In this declaration, a "**Dealer**" means the person or entity acting (or representing that it acts) as or on behalf of your investment advisor, broker or dealer in connection with the Plan. You acknowledge that a Dealer is your agent and not our agent. We are entitled to accept and act on any notice, authorization or other communication that we believe in good faith to be given by you or Dealer on your behalf. Any reference in this declaration to your instructions or requests includes instructions or requests from your Dealer on your behalf. We are under no obligation to verify that a Dealer is properly authorized to act as your agent or is otherwise authorized to act on your behalf.
4. **TRANSFERS TO YOUR PLAN:** You may from time to time transfer cash or securities that are acceptable to us in our sole discretion from: (i) your RRSP or RRIF; (ii) you to the extent that the transfer is an amount described in paragraph 60(1)(v) of the Act; (iii) your spouse's or former spouse's RRSP or RRIF in circumstances to which subparagraph 146.3(2)(f)(iv) of the Act applies; or (iv) any other source permitted by the Act from time to time. We will hold assets transferred to your Plan, investments made with those assets and any income or capital gains realized in respect of those investments in trust for you in accordance with the terms and conditions of this declaration.
5. **INVESTMENTS:** We will invest assets transferred to your Plan in the investments selected by you at the then current offering price next determined following the receipt of the transferred assets. In making your investment selection, you may select securities of mutual funds managed by the Agent or other investments acceptable to the Agent in its sole discretion. In making investments for your Plan, we will not be limited to investments authorized by legislation governing the investment of property held in trust. Cash distributions received by us in respect of investments held in your Plan will be re-invested in additional investments of the same type. In the absence of satisfactory investment instructions, we may invest cash in units of a money market fund managed by the Agent.
6. **PLANHOLDER'S RESPONSIBILITIES:** You acknowledge and assume responsibility for the following:
 - (a) assessing the appropriateness of any investment, selecting investments for your Plan, obtaining appropriate advice, or authorizing a Dealer to do any of these things for you;
 - (b) ensuring that any transfers to and investments in your Plan comply with the rules under the Act or any other applicable legislation, including that any security held in your Plan is a qualified investment for the Plan under the Act and is not a "prohibited investment" under the Act; and
 - (c) any annuity purchased with assets of your Plan complies with the Act. We will not be responsible for any tax payable in respect of non-qualified investments or for loss resulting from the sale or other disposition of assets of your Plan.
7. **PAYMENTS TO THE PLANHOLDER:** The assets of your Plan will be used to provide you with an income that will begin on or before December 31 of the second calendar year of your Plan. In each calendar year, the total payments to you from your Plan will not be less than the minimum amount (the "**Minimum Amount**") required to be paid under the Act. The amount of any payment from your Plan will not exceed the value of the assets of your Plan immediately before the time of the payment. You may specify in writing, in a form satisfactory to us, the amount and frequency of the

payments to be made during any year. You may change the amount and frequency of the payments or request additional payments by instructing us in writing in a form satisfactory to us. If you do not specify the amount and frequency of payments to be made in a year or if the amount that you specify is less than the Minimum Amount for a year, we will make a payment or payments as we deem necessary, in our sole discretion, to ensure that the Minimum Amount for that year is paid to you. If the value of your Plan is less than \$500, we may make a payment to you from your Plan equal to the value of your Plan. In the absence of satisfactory instructions, we may sell investments of your Plan selected by us, in our sole discretion, for the purpose of making payments to you. Payments from your Plan will be paid to you net of all proper charges including tax required to be withheld. We may impose any other reasonable requirements and conditions in respect of the foregoing. A payment to you will be deemed to have been made when: (i) a cheque payable to you is mailed in a postage pre-paid envelope addressed to you at the address indicated on the Application or subsequently provided by you or your Dealer to us; or (ii) an amount is electronically transferred to the credit of a bank account designated by you or your Dealer.

8. **CALCULATION OF THE MINIMUM AMOUNT:** The Minimum Amount will be zero in the first calendar year of your Plan and for each subsequent year will be calculated in accordance with the provisions of the Act. You may elect to base the Minimum Amount on your age or your spouse's age. This election is binding and cannot be changed, revoked or amended under any circumstances.
9. **TRANSFERS:** Following the receipt of your written instructions in a form acceptable to us, we will transfer all or part of the assets of your Plan (net of all proper charges and any amount that we are required by the Act to retain to ensure the payment of the Minimum Amount) to the issuer of an RRSP, a RRIF or a life annuity that conforms with the Act, as instructed by you in the notice. The transfer of assets will be made subject to any restrictions under the Act. You may instruct us to sell or transfer specific assets to effect the transfer. If you fail to provide us with satisfactory written instructions, we may sell or transfer the assets we deem appropriate, in our sole discretion, to effect the transfer. If we receive instructions from you to transfer some of the assets of your Plan, we may request instructions to transfer all of the assets of your Plan and we may delay the transfer until we have received the instructions.
10. **NON-QUALIFIED INVESTMENTS AND PROHIBITED INVESTMENTS:** Subject to Section 22, if your Plan becomes liable for tax, interest or penalties under the Act or similar provincial legislation, you authorize us to redeem sufficient assets of your Plan to pay the liability and we will not be liable for any resulting loss. We will exercise the care, diligence and skill of a reasonably prudent person to minimize the possibility that the Plan holds a non-qualified investment. Other than as set out in this declaration, it will be your responsibility to determine whether any investment in the Plan is or remains a qualified investment for RRIFs under the Act. We will not be liable for any tax payable in respect of a non-qualified investment or prohibited investment directed by you, or made or held in the trust established hereunder. We will not otherwise be liable for the making, retention, or sale of any investment or reinvestment as herein provided or for any loss or diminution of the assets comprising the Plan.
11. **RELATIONSHIP BREAKDOWN AND PAYMENTS INTO COURT AND TO THIRD PARTIES:** To the extent and in the manner permitted by applicable law, we will make a payment or payments out of your Plan to effect a division of property, provided such payment is made pursuant to decree, order, or judgment of a competent tribunal or under a written separation agreement in the settlement of rights arising out of or on the breakdown of your marriage or other conjugal relationship.

If there is a dispute about:

 - (a) the validity of enforceability of any legal demand or claim against the assets of the Plan; or
 - (b) the authority of a person or personal representative to apply for and accept receipt of the proceeds payable under the Plan on your death, we and the Agent are entitled to either apply to a court for directions or pay the disputed amounts into court and, in either case, fully recover any legal costs that either one incurs in this regard

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RETIREMENT INCOME FUND
DECLARATION OF TRUST**

as expenses from the account. Where required by law, we and the Agent are entitled to make payments out of your Plan to third parties without your prior authorization.

12. **SUCCESSOR ANNUITANT AND BENEFICIARY DESIGNATION:** If you are domiciled in a jurisdiction that by law permits you to validly designate a beneficiary other than by will, you may designate: (i) your spouse as successor annuitant of your Plan; or (ii) one or more beneficiaries to receive the assets of your Plan in the event of your death. You must make, amend, or revoke the designation by way of written notice in a form acceptable to us and delivered to us. Any designation, amendment, or revocation will be valid only from the day following its receipt by us.
13. **PAYMENTS UPON YOUR DEATH:** Upon receipt of satisfactory evidence of your death, we will continue payments to your spouse provided he or she is the successor annuitant of your Plan. If your spouse becomes the successor annuitant of your Plan, he or she will be deemed to be the annuitant of your Plan with the same rights as if he or she had been the original annuitant and all references to "you" in this declaration will be deemed to refer to him or her. If your spouse is not the successor annuitant, we will hold the assets of your Plan for payment in a lump sum to your designated beneficiary(ies). If you have not designated a beneficiary or if the designated beneficiary predeceases you, the payment will be made to your legal representatives or as required by law. The payment will be made subject to the deduction of all proper charges, including tax required to be withheld, after we receive the releases and other documents that we require in our sole discretion.
14. **PROHIBITION:** No advantage that is conditional on the existence of the Plan may be extended to you or to a person not dealing at arm's length with you, other than those advantages permitted under the Act and under any applicable provincial legislation. Payments made from the Plan may not be assigned in whole or in part. We reserve the right to prohibit any transaction, investment, payment or transfer that is or may be prohibited or penalized under the Act.
15. **PROOF OF AGE AND SOCIAL INSURANCE NUMBER:** The statement of your age and social insurance number on the Application is deemed to be your certification thereof and an undertaking by you to provide evidence or proof thereof if requested by us.
16. **YOUR ACCOUNT:** We will maintain an account in your name recording all transfers to your Plan, investments held in your Plan, income earned on investments, payments from your Plan, expenses incurred by your Plan and the minimum and maximum amount payable from your Plan. We will send you a statement of your account at least once a year.
17. **INCOME TAX RECEIPTS:** If applicable, before March 31 of each year, we will provide you with any applicable income tax statement pertaining to your Plan and required to be filed with your personal income tax return for the previous taxation year.
18. **AMENDMENTS:** From time to time, we may in our sole discretion amend this declaration with the concurrence of the Canada Revenue Agency and, as required, provincial tax authorities, provided that an amendment to this declaration does not disqualify the Plan as a RRIF. Any amendment to this declaration that is necessary to ensure compliance with any legislation will be effective without further action or notice to you. In any other case, we will provide you with at least 30 days' written notice of every amendment to this declaration.
19. **NOTICE:** We will provide notice by pre-paid regular mail, electronic mail or other form of electronic transmission addressed to you at the address indicated on the Application or such other address as you or your Dealer may provide to us from time to time. Notice we give you will be deemed to have been made on the day the notice is sent or transmitted. Any notice you give to us or the Agent must be in writing in form satisfactory to us or the Agent, as applicable. We or the Agent may, in our sole discretion, accept notice by means of electronic transmission. We may for any reason refuse to act on any notice, request or other communication from you or your Dealer and will not be liable for any resulting loss. Notice you or your Dealer gives to us will be deemed to have been made on the day of actual receipt of the notice.
20. **OUR RESPONSIBILITY AND DELEGATION OF DUTIES:** We are ultimately responsible for administering the Plan in accordance with the terms of this declaration and the provisions of the Act. We are entitled to exercise, in our sole discretion, the rights, powers, and privileges that otherwise could be exercised by a beneficial owner of the assets of the Plan. We may employ or engage accountants, brokers, lawyers, and others and may rely on their advice and services. Without detracting in any way from our responsibility, we may appoint one or more agents, including but not limited to the Agent, to perform any of our obligations under this declaration. We will not be liable for the acts or omissions of any of its advisors or agents. We will not be liable for the acts or omissions of a Dealer or any of your agents, advisors or service providers. Upon transferring assets from the Plan or making a payment from the Plan, we will be discharged from all further duties and liabilities under this declaration with respect to the assets transferred or paid out of the Plan.
21. **FEES AND EXPENSES:** Unless otherwise prohibited by the Act, we are entitled to charge your Plan fees for out-of-the-ordinary services requested by you or a Dealer in connection with your Plan and to reimbursement for all taxes, penalties and interest imposed on us and for all other costs and expenses incurred by us in connection with your Plan, or as described in the prospectus for the mutual fund(s) managed by the Agent held in your Plan. All amounts so payable will be charged against and deducted from the assets in your Plan, unless otherwise prohibited by the Act or you make other arrangements with us. We may, in our sole discretion, sell any of the assets in the Plan in order to pay same and we will not be responsible for any resulting loss.
22. **TAXES IMPOSED ON YOU OR YOUR PLAN:** We are not responsible for taxes, interest and penalties imposed on you or the Plan, except for taxes, interest and penalties, if any, imposed on us by the Act that are not reimbursable by the Plan under the Act. If your Plan becomes liable for tax, interest or penalties under the Act or provincial legislation, we may, in our sole discretion, sell any investment of your Plan to pay the liability. We will not be liable for any resulting loss.
23. **INDEMNITY:** None of the us, our officers, employees or agents will be liable for any loss suffered or for any taxes, interest or penalties imposed under the Act as a result of holding or dealing with the assets of your Plan in accordance with instructions that we believe in good faith to have been given by you or your Dealer or dealing with the assets of your Plan in accordance with the provisions of this declaration. You, your personal representatives and each beneficiary under your Plan will at all times indemnify and save harmless us and our agents from all taxes, assessments, expense, liability, claims and demands arising out of the purchase, sale or retention of assets of your Plan, payments on your death to any designated beneficiary, or anything done in connection with your Plan, other than as the result of our fraud, dishonesty, bad faith, willful misconduct, or gross negligence.
24. **SUCCESSOR TRUSTEE:** We may resign and be discharged from all duties and liabilities under this declaration by giving written notice to the Agent. The Agent is initially nominated to appoint a company as successor trustee (the "**Successor Trustee**"). If a Successor Trustee cannot be found within a reasonable period, we and/or the Agent may apply to a court of competent jurisdiction for the appointment of a Successor Trustee, acceptable to the Agent. Upon acceptance of the office of trustee of your Plan, the Successor Trustee will be trustee of your Plan as if it had been the original declarant of your Plan and your Plan continues in full force and effect with the Successor Trustee. Any trust company resulting from a merger, amalgamation or continuation to which we are party, or succeeding to substantially all of our RRIF trusteeship business (whether by sale of such business or otherwise), will, if authorized, become the Successor Trustee of the Plan without further act or formality. At the time of the appointment or succession of a Successor Trustee, we will be relieved of all duties and liabilities under this declaration.
25. **LOCKED-IN PLANS:** Where you have indicated in the Application that assets transferred to your Plan will be "locked-in" in accordance with applicable pension benefits legislation, a locking-in addendum (the

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"**Addendum**") that forms part of this declaration will be provided to you. In the event of any inconsistency between the terms of the Addendum and the terms of this declaration, the terms of the Addendum will apply.

26. **DEFINITIONS:** In this declaration:
- (a) **Act** means the *Income Tax Act* (Canada);
 - (b) **RRIF** means a registered retirement income fund as defined in the Act and, where applicable, the *Taxation Act* (Quebec);
 - (c) **RRSP** means a registered retirement savings plan as defined in the Act and, where applicable, the *Taxation Act* (Quebec); and
 - (d) **Spouse** means a spouse or common-law partner as defined in the Act or legally married persons.
 - (e) **You** means "Annuitant" as defined in subsection 146.3(1) of the Act.
27. **APPLICABLE LAWS:** This declaration will be governed, construed and enforced in accordance with the laws of Ontario and Canada.
28. **ELECTRONIC SIGNATURES:** You hereby authorize and direct the Agent and us to rely on your electronic signature on the Application, this declaration and all ancillary documents and all such electronic signatures, however provided to the Agent and us, will be deemed to be reliable for the purpose of identifying you and will be deemed to be reliable for the purpose of the document signed.
29. **HEIRS, EXECUTORS AND ASSIGNS:** The terms of this declaration will be binding on your heirs, executors, administrators and assigns and on the Agent's and our respective successors and assigns.
30. **SPECIMEN PLAN:** This declaration conforms with Specimen Plan RIF 1693.

Effective April 1, 2018